

24STCV33753 24STCV33753

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C407%2C09%2F04%2F2026

Source SHA-256: a5caf31cc4773f63a2caf8143328efc823389124b74bec649460ec82302d4b0f

Case Number: 24STCV33753 Hearing Date: September 4, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

4, 2026 TRIAL DATE: March 29, 2027

CASE: The City of Los Angeles v. Greater Los

Angeles Zoo Association, et al.

CASE NO.: 24STCV33753

MOTION

BY PLAINTIFF FOR SUMMARY ADJUDICATION

OF

CAUSES OF ACTION

Defendant Greater Los Angeles Zoo Association ("GLAZA" or "Defendant") is a nonprofit corporation which has operated and managed funds for the Los Angeles Zoo and Botanical Gardens ("Zoo") on behalf of plaintiff City of Los Angeles ("City" or "Plaintiff"). In 2024, the parties executed an Interim Agreement to ensure the continuity of critical programs and services while the City completed a public bidding process for the long-term management of the Zoo. The Interim Agreement provides that in collecting and managing funds for the Zoo on behalf of the City, GLAZA shall act as the City's fiduciary and fiscal agent. City alleges that GLAZA committed ten breaches of the Interim Agreement.

City

now moves for summary adjudication of two claims within its causes of action. For the reasons stated herein, the court finds it does not have jurisdiction to rule on the motion.

I. BACKGROUND

On December 20, 2024, City filed a Complaint against GLAZA for (1) breach of contract, (2) breach of the implied covenant of good faith and fair dealing; (3) breach of fiduciary duty, (4) conversion, and (5) declaratory relief.

Motion

for Preliminary Injunction and Appeal

On February 25, 2025, and April 10, 2025, City filed a motion and amended motion for preliminary injunction.

On June 16,

2025, the court heard argument on the City's motion and took the matter under submission.

On June 25, 2025, the court granted the motion and concurrently issued an injunction by separate order.

On June 27,

2025, GLAZA filed a Notice of Appeal of the court's June 25, 2025 order. The appeal is set for oral argument on September 8, 2026.

Motion

for Summary Adjudication

On April 20, 2026, City filed this motion for summary adjudication of two causes of action.^[1]

On August 14, 2026, GLAZA filed an opposition.

On August 24, 2026, City filed a

reply.

II. DISCUSSION

The court does not have jurisdiction to rule on City's motion for summary adjudication.

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Code Civ. Proc., § 916(a).)

Here, the court granted City's motion for preliminary injunction on June 25, 2025 (the "Injunction Order"). Foundational to that ruling was the court's interpretation of the Interim Agreement. (See Minute Order, 06/25/25.) GLAZA timely filed an appeal of that order. (See Notice of Appeal, 06/27/25.) City now seeks summary adjudication of claims that, in City's own words, "primarily calls for contract interpretation" (Mot., p. 5:22), and requires "the same exercise of contract interpretation" of the same agreement (Mot., p.12, fn. 12.) In the court's view, City's motion for summary adjudication embraces the matters raised in the Injunction Order—namely, the interpretation of the same contractual provisions. The pending appeal will likely address whether this court issued the restraining order based on a correct interpretation of the Interim Agreement. Contract interpretation is a question of law. The Court of Appeal may arrive at a different interpretation of the Interim Agreement, which in turn would affect the Injunction Order and the court's analysis of the instant motion for summary adjudication. Thus, disposing of this merits motion during the pendency of GLAZA's appeal would run the risk of producing a result that is irreconcilable with the Court of Appeal's possible reversal of the Injunction Order. Contrary to City's position, allowing for the perfecting of the appeal serves judicial economy.

The court acknowledges that, typically, an appeal of an order granting or denying a motion for preliminary injunction does not deprive the court of jurisdiction to proceed to try the cause on its merits. Indeed,

City provides a string-cite of authority supporting that proposition. (See Reply, p. 13:9-13.) However, the court is not persuaded that this

authority directs a hearing on this motion at this time for three reasons.

First, none of

the cited cases concerned the circumstances presented here: an injunction order based on interpretation of a contract and a motion for summary judgment calling for interpretation of the same contract.

Gray v. Bybee (1943) 60 Cal.App.2d 564, 571 [an appeal “from an order granting or refusing to grant a preliminary restraining order...does not deprive the court of jurisdiction to proceed to try the cause on its merits”]; Collateral Loan & Secondhand Dealers Assn. v. Cnty. of Sacramento (2014) 223 Cal.App.4th 1032, 1044 [trial court “is still vested with jurisdiction over the merits of the matter” during appeal of preliminary injunction]; Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 191 [“appeal from the denial of a preliminary injunction does not stay further trial court proceedings on the merits”].)

Second, none

of the City's cases stand for the proposition that a trial court always retains jurisdiction to try the cause of the merits during an appeal from an order granting or refusing to granting a preliminary injunction. Such a rule would be unwise considering there are exceptions. The present case is a case in point.

Third, and

relatedly, the language of Code of Civil Procedure section 916 does not set forth a bright line rule. Rather, under Section 916, “the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby,” City does not provide any analysis to demonstrate its motion is not embraced or affected by the appeal of the Injunction Order.

III. CONCLUSION

In sum, the

court does not have jurisdiction to hear this motion. The court will discuss with the parties next steps, including the setting of a status conference regarding the appeal and the re-calendaring of City's motion for summary adjudication.

Moving

party to give notice unless waived.

Dated: September 4, 2026

Brock T. Hammond

Judge of the Superior Court

[1] City represents that if the motion is granted, City will voluntarily dismiss the remaining causes of action and submit a proposed judgment for the court's approval.